

SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

Present:

Justice Ayesha A. Malik

Justice Shakeel Ahmad

Civil Petition No. 208 of 2024 and CMA No. 354 of 2024.

(Against the judgment dated 24.10.2023, passed by the Punjab Service Tribunal, Lahore, in Appeal No. 1809 of 2022)

The Secretary, Excise, Taxation and
Narcotics Control Department and others

Petitioner(s)

Versus

Muhammad Abdullah Khan

...Respondent(s)

For the Petitioner(s) : Mr. Sana Ullah Zahid, Addl.
Advocate General, Punjab
alongwith M. Aslam Sipra, Dy.
Secretary.

For the respondent(s) : Mr. Mehmood Ahmed Qazi, ASC.

Date of hearing : 31.03.2026

JUDGMENT

SHAKEEL AHMAD, J.- This petition for leave to appeal under Article 212(3) of the Constitution of the Islamic Republic of Pakistan, 1973, has been preferred against the judgment dated 24.10.2023 ("**impugned judgment**") passed by the Punjab Service Tribunal, Lahore ("**Tribunal**"), whereby the Appeal No. 1809/2022 filed by the respondent was allowed and the petitioners were directed to record his date of birth i.e. 18.11.1966 instead of 07.01.1964 in the service record in accordance with subsequently obtained Union Council certificate.

2. Facts and circumstances giving rise to the present petition are that the respondent initially joined service in the Ministry of Communication on 17.05.1987. Thereafter, through proper channel, he obtained employment in the Pakistan Telecommunication Company Limited (formerly Pakistan Telecommunication Company, "**PTC**") on 10.02.1992. At the time of his induction in PTCL, his date of birth was recorded as 07.01.1964 on the basis of his matriculation certificate. During the entire period of his service in PTCL, the respondent never sought correction of his date of birth within two years from the date of his entry into Government service in terms of Rule 7.3 (Annexure-B) of the Punjab Financial Rules (Vol.I), Part I. Subsequently, pursuant to Advertisement No.03/1995 issued by the Punjab Public Service

Commission, the respondent applied, through proper channel, for appointment to the post of Excise and Taxation Officer (BS-17). In his application, he mentioned the same date of birth, i.e., 07.01.1964, in conformity with his matriculation certificate and PTCL service record. Under the advertisement and the relevant recruitment rules, the maximum age limit for the post was 28 years, extendable up to 35 years for in-service candidates of the Federal or Provincial Governments. At the relevant time, the respondent was overage by approximately three years and, therefore, availed the benefit of age relaxation available to in-service candidates. After his selection and appointment as Excise and Taxation Officer on 17.04.1996, the respondent sought correction of his date of birth on the basis of a Union Council certificate reflecting his date of birth as 18.11.1966. His earlier request for the correction of the date of birth was declined by the Board of Intermediate and Secondary Education Multan on 01.10.1997. Subsequently, he managed to obtain a fresh matriculation certificate showing an altered date of birth, i.e., 18.11.1966. On the basis of the revised certificate, the respondent again applied to the department for correction of his date of birth. The request was declined, *inter alia*, on the ground that he had already secured an appointment by relying upon the previously recorded date of birth and had availed age relaxation in terms of condition No. (iv) of the advertisement. However, the Tribunal allowed his appeal and directed the correction of his date of birth in accordance with the Union Council certificate and the freshly obtained matriculation certificate. Hence, the present petition.

3. Heard both sides and the record examined thoroughly.

4. At the very outset, the learned counsel appearing on behalf of the respondent raised a preliminary objection, contending that the instant petition is barred by limitation as it has allegedly been filed beyond the prescribed period of sixty days. We have considered the objection with the assistance of the learned counsel for the parties. It is observed that the question of limitation is to be determined strictly on the basis of the record, the relevant statutory provisions, and the settled principles governing computation of limitation, and not on mere assertions.

5. The record reflects the following undisputed position:

- i. The impugned judgment of the Tribunal was passed on 24.10.2023.
- ii. The petitioners applied for the certified copies of the judgment on 25.10.2023, which were delivered to them on 05.12.2023.
- iii. The appeal was filed before this Court on 25.01.2024.

These facts also find support from the letter dated 22.07.2025, issued by the Registrar, Punjab Service Tribunal, Lahore, to the Secretary Excise, Taxation & Narcotics Control Department, Government of Punjab (available at page 29 of CMA No. 6583/2025).

6. From the above, it is evident that the period spent in obtaining the certified copies of the impugned judgment is liable to be excluded in terms of the settled principles governing the computation of limitation. Upon such exclusion, the present petition has been filed within the prescribed limitation period of sixty days. Consequently, the preliminary objection raised by the learned counsel for the respondent is overruled.

7. Coming to the merits of the case, the controversy, though apparently confined to the correction of the date of birth, in fact raises important questions relating to the finality of service record, the doctrine of estoppel, *bona fide* conduct, and the misuse of statutory concessions such as age relaxation. In this backdrop, the following questions arise for determination:

- i. Whether a civil servant can seek correction of his date of birth on the basis of a Union Council certificate and a subsequently obtained matriculation certificate after having entered service and benefited from the date of birth earlier recorded in the service record.
- ii. Whether the doctrines of estoppel and acquiescence apply in service matters concerning the date of birth, where no request for correction is made within the prescribed period of two years.
- iii. Whether the respondent, having availed age relaxation on the basis of the date of birth recorded in his matriculation certificate and service record, can subsequently claim a different date of birth.

- iv. Whether the Tribunal exercised jurisdiction in accordance with law while allowing the appeal of the respondent.

8. The statutory provision on the correction of the date of birth of a civil servant is not contained in one single provision, rather it flows from a combination of: Punjab Civil Servants (Appointment & Conditions of Service), Rules, 1974, ESTACODE instructions, and Punjab Financial Rules, Vol.1 and Annex-B. Annexure-B to Rule 7.3 of the Punjab Financial Rules provides that the declaration of age made at the time of entry of the civil servant into Government service shall be deemed to be conclusive unless he applies for correction of his age as recorded, within two years of his entry into Government service. No request shall be entertained after the expiry of the said period. It is an admitted fact that the respondent never applied for correction of his date of birth within the stipulated period of two years from the date of his entry into Government service.

9. It is a settled principle of law that the date of birth once recorded in the service book attains finality, and thereafter no alteration in the date of birth of a civil servant is permissible. In this regard, Rule 21-A(3) of the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974 provides as follows:

“The date of birth once recorded at the time of joining Government service shall be final and thereafter no alteration in the date of birth of a civil servant shall be permissible”.

The rationale underlying the rule is rooted in three well-recognised considerations, namely administrative certainty, prevention of manipulation at a belated stage, and protection of the service structure and seniority. The Courts have consistently declined belated attempts to alter the date of birth, particularly where such attempts are made after availing benefits or at a stage proximate to retirement. In this context, reference may be made to the case of *Ahmed Khan Dehpal*¹. It is an admitted fact that the respondent recorded his date of birth as 07.01.1964 in the service book at the time of his initial appointment in the Ministry of Communications, which was duly signed by him, and continued under that date of birth throughout his service in the said

¹ Ahmed Khan Dehpal v. Government of Balochistan (2013 SCMR 759)

department. He applied for a fresh appointment as Excise and Taxation Officer, using the same date of birth; however, he never sought correction of his date of birth at the time of joining service nor during his stay in the PTCL. Such conduct of the respondent clearly demonstrates acquiescence in the recorded date of birth and constitutes a waiver of any right to challenge the same at a belated stage. The law assists the vigilant and not those who sleep on their rights. He is also hit by the doctrine of estoppel, as he himself declared his date of birth as 07.01.1964, thereby inducing the petitioners to treat him as such. He obtained the benefit of age relaxation on that basis for the post of Excise and Taxation Officer. Having gained the advantage, he cannot now be permitted to approbate and reprobate simultaneously by asserting a different date of birth. This aspect goes to the root of the case. The respondent was overage under the general rule and qualified only by virtue of the relaxation granted to him as an in-service candidate. If his newly claimed date of birth, i.e., 18.11.1966, is accepted, he would not have required age relaxation at all. Thus, the entire basis of his eligibility at the time of appointment becomes questionable, as he was otherwise overage by approximately three years. He took advantage of the earlier recorded date of birth to obtain relaxation, and thereafter sought to reduce that date to gain extended service benefits. This constitutes a clear case of abuse of process and misrepresentation through conduct. The attempt of the respondent to change the date of birth after long service in the Ministry of Communications and Pakistan Telecommunication Company Limited, and after securing a fresh appointment on the basis of the date of birth recorded in the previous service record and matriculation certificate, is inherently suspect; such claims are ordinarily motivated to gain undue extension in service. Any structure built on such alteration, in our view, is legally not sustainable. The reliance placed by the Tribunal on the subsequently obtained Union Council and matriculation certificates is misplaced.

10. It is settled that correction in the educational record does not automatically entitle an employee to a corresponding correction in the service record, particularly where the employee had earlier relied upon a different entry, and the correction is

sought at a belated stage. Such a change would affect vested rights or benefits already availed.

11. The Tribunal, while allowing the appeal of the respondent, committed a legal error by ignoring the respondent's previous service in Pakistan Telecommunication Company Limited, as well as the legal consequences arising from his availing the benefit of age relaxation on the basis of such service. It further overlooked the settled principles of estoppel and acquiescence and erroneously treated the subsequently obtained matriculation certificate as conclusive. This clearly reflects misreading and non-reading of the material available on record, warranting interference.

12. In the result, this petition is converted into an appeal and allowed. The impugned judgment of the Tribunal is set aside. Consequently, the departmental order declining rectification of the respondent's date of birth on the basis of a subsequently obtained matriculation certificate, based on Union Council certificate, is restored. The pending CMAs are also disposed of. No order as to costs.

Islamabad

31.03.2026

Approved for reporting

Zia/ *